

## Uma Shankar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 August 2018 · Writ - C No. 27427 of 2018 · **Writ disposed; EE to consider representation; cl. 6.14 if liability accepted.**

### HEADNOTE

A consumer challenging a recovery certificate for pending electricity dues, on the plea that no bill was issued and the demand was unexplained, was not granted merits relief. The writ was disposed with a direction that a representation to the Executive Engineer be considered in accordance with law within one month. If the consumer accepted liability and was ready to pay, the Executive Engineer could consider the claim under clause 6.14 of the U.P. Electricity Supply Code, 2005. Coercive action was stayed for one month.

### FACTUAL SUMMARY

Uma Shankar obtained an electricity connection to run a tube-well. Dues remaining unpaid, the respondents issued a recovery certificate dated 21 May 2018 for Rs. 2,01,680 plus interest and other charges as pending electricity dues. He filed a writ petition challenging the certificate, contending that no bill had been given to him and that the basis of the demand was unexplained. After an 18 August 2018 listing on which none appeared for him, the Division Bench heard the petition on 21 August 2018.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.14

recovery certificate; representation; cl. 6.14 on accepted liability

#### HOLDING

A writ challenging a recovery certificate for electricity dues, where the consumer disputes the bill and quantum, may be disposed by directing the Executive Engineer to consider a representation in accordance with law within a fixed time. If the consumer accepts liability and is ready to pay, the Executive Engineer may consider the claim under clause 6.14 of the Supply Code, 2005; coercive recovery may be stayed meanwhile.

¶ 1

### PRINCIPLE TAGS

**installment-payment-clause-6.14** A consumer challenging a recovery certificate for pending electricity dues, on the plea that no bill was issued and the demand was unexplained, was not granted merits relief. The writ was disposed with a direction that a representation to the Executive Engineer be considered in accordance with law within one month.. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — WHETHER ANY ELECTRICITY BILL WAS ISSUED AND WHETHER THE RECOVERY OF RS. 2,01,680 PLUS INTEREST WAS CORRECTLY COMPUTED**

Quantum and billing left to the Executive Engineer on representation. ¶ 1